

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K

6/18/26

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

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1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
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Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

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TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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2:00 PM

LINE: 1

22-CIV-03614

DAVID LYON VS. STATE OF CALIFORNIA DEPARTMENT OF TRANSPORTATION, ET AL

DAVID LYON
CALTRANS

DAVID E. LYON
JOSE GONZALEZ

DEFENDANT STATE OF CALIFORNIA’S MOTION FOR SUMMARY JUDGMENT AND ADJUDICATION OF ISSUES

TENTATIVE RULING:

For the reasons stated below, Defendant State of California’s Motion for Summary Judgment is **GRANTED**.

Defendant State of California’s Request for Judicial Notice is **DENIED** as irrelevant.

Defendant State of California’s evidentiary objections are **OVERRULED** as to Nos. 1–16 and 20–21, and **SUSTAINED** as to Nos. 17–19 and 22–35 for lack of authentication or foundation, and as to Nos. 36–37 because the purported evidence was not submitted with the opposition papers.

BACKGROUND

The Third Amended Complaint alleges that, on September 7, 2020, Plaintiff David Lyon was injured in an accident while riding his bicycle downhill on State Route 1, which was constructed, designed, and maintained by Defendant State of California. (June 17, 2025 Third Amended Complaint, ¶¶ 17–18.) The accident was allegedly caused by a curb or dike placed on the edge of the roadway that unexpectedly narrowed the shoulder, forcing Lyon to veer off the roadway into the poorly maintained surrounding area to avoid crashing into stopped automobile traffic in the lane of travel. (Id., ¶ 20.) The TAC alleges that the narrow shoulder, the dike, and the surrounding area of the highway constituted a dangerous condition for which the State is liable for creating the condition, failing to remediate it, and failing to warn of it. (Id., ¶¶ 24–38.)

The State moves for summary judgment, contending that the alleged condition was not dangerous, that Lyon cannot establish the State had notice of the condition, and that the condition did not cause the accident. The State also contends that it is immune from liability for the design of the condition and for failing to warn. In the alternative, the State moves for summary adjudication of these issues.

LEGAL STANDARD

A party may move for summary judgment if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment shall be granted only if all papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Id., subd. (c).)

A party may move for summary adjudication as to one or more causes of action within an action if the party contends that the cause of action has no merit. (Code Civ. Proc., § 437c, subd. (f)(1).) A defendant moving for summary judgment or summary adjudication bears the initial burden of showing that one or more elements of the cause of action cannot be established, or that there is a complete defense to the cause of action. (Id., subd. (p)(2).) If the defendant carries that burden, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to the cause of action or defense. (Ibid.)

The moving party's ultimate burden of persuasion that there are no triable issues of material fact never shifts. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the opposition. (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) Summary judgment must be denied, despite deficiencies in the opposition, if the moving party has not carried its burden. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives the opposing party of the right to trial, doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) The moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and all reasonable inferences are drawn in favor of the opposing party. (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

NO TRIABLE ISSUE AS TO THE EXISTENCE OF A DANGEROUS CONDITION

To establish public entity liability for injury caused by a condition of public property, a plaintiff must show, among other things, that the property was in a dangerous condition at the time of the injury. (Gov. Code, § 835.) A "dangerous condition" is a condition of property that creates a substantial, as distinguished from a minor, trivial, or insignificant, risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner. (Gov. Code, § 830, subd. (a).)

The State contends that the subject public property was not in a dangerous condition at the time of the accident. The State relies on two categories of evidence. First, the State relies on the absence of prior accidents involving the alleged condition. The State submits traffic reports, incident logs, records of complaints, and testimony from State employees showing the absence of any bicycle accidents at the subject location for at least five years before Lyon's accident. (Dec. 17, 2025 Separate Statement, Nos. 11–15.) Second, the State submits the expert opinion of a licensed civil engineer with 28 years of experience in traffic engineering, who opines that neither the subject dike, adjacent shoulder, nor relevant portion of State Route 1 was dangerous to bicyclists before or at the time of the accident. (Dec. 17, 2025 Index of Evidence, Ex. 3, Senior Decl., ¶ 44e.)

Lyon argues that the accident data does not assist the State, but his cited authority recognizes that the absence of similar accidents is relevant to determining whether a condition is dangerous. (*Lane v. City of Sacramento* (2010) 183 Cal.App.4th 1337, 1346.) The State's accident data, considered together with the expert opinion of a qualified civil engineer, is sufficient to carry the State's initial burden and shift the burden to Lyon to demonstrate a triable issue of material fact as to whether the alleged condition was dangerous.

In opposition, Lyon relies on three categories of evidence. First, he relies on the State's accident data and purported traffic reports maintained by the University of California. Even setting aside the inadmissibility of much of this data, Lyon's argument that all nearby accidents should be considered—regardless of the type of vehicle involved or the cause of the accident—is not persuasive. Unless an accident was caused by the same

alleged dangerous condition, it is not probative of whether the alleged condition here created a substantial risk of injury. Traffic accidents may occur for many reasons unrelated to a dangerous condition of public property. There is no evidence that the narrow shoulder, dike, or lack of fill beside the highway increased the risk of injury to persons using the roadway with due care.

Second, Lyon relies on purported guidelines and standards from the State's Highway Design Manual. Even setting aside the lack of authentication of the HDM excerpts, the State correctly notes that the cited portions are guidelines. (Senor Decl., ¶ 31.) Although the HDM may recommend particular designs to enhance roadway safety, a trained engineer's deviation from those guidelines on a particular project does not, by itself, establish that the deviation created a substantial risk of injury under the circumstances.

Third, Lyon relies on images of the site and his own personal knowledge of the accident. This evidence does not create a triable issue as to whether the alleged condition created a substantial risk of injury. The relatively narrow shoulder, the dike, and the lack of fill off the side of the roadway are not so obviously dangerous that a reasonable trier of fact could find that the condition of the highway presented a substantial risk of injury to a person using the roadway with due care.

Accordingly, Lyon has not carried his shifted burden, and the State has carried its ultimate burden of showing that no triable issue of material fact exists as to whether a dangerous condition of public property existed. Because the absence of a dangerous condition is fatal to both causes of action alleged against the State, the Court need not decide whether the State is otherwise immune from liability or whether Lyon can establish the remaining elements of his causes of action.

The motion for summary judgment is **GRANTED**.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Defendant shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

2:00 PM

LINE: 2

24-CIV-01936

ITRIA VENTURES LLC, VS. MEIMEI LI, ET AL

ITRIA VENTURES LLC,
MEIMEI LI

JASON S. TAKENOUCHI

DEFENDANT SF GLASS CLEANING SOLUTIONS' MOTION TO SET ASIDE DEFAULT GRANTING OF MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Itria Ventures LLC's unopposed motion for summary adjudication of the third cause of action for breach of contract against Defendant SF Glass Cleaning Solutions is **GRANTED**.

The hearing on this motion was initially set for December 18, 2025. Defendant's counsel appeared at the hearing and explained that he had intended to file an opposition but had mistakenly calendared a later due date. (Minute Order, Dec. 18, 2025.) The Court continued the hearing to June 18, 2026, and granted Defendant leave to file an opposition and Plaintiff leave to file a reply. (Ibid.) Defendant again failed to file any opposition, which was due by May 29, 2026. (Code Civ. Proc., § 437c, subd. (b)(2).) Accordingly, Plaintiff's motion remains unopposed.

LEGAL STANDARD

A party may move for summary judgment if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment shall be granted if all papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Id., subd. (c).)

A party may move for summary adjudication as to one or more causes of action within an action. (Code Civ. Proc., § 437c, subd. (f)(1).) A plaintiff moving for summary adjudication bears the initial burden of proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) If the plaintiff carries that burden, the burden shifts to the opposing party to show that a triable issue of material fact exists as to one or more elements of the cause of action or as to each element of an affirmative defense. (Code Civ. Proc., § 437c, subd. (p)(1); *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

The moving party's ultimate burden of persuasion that there are no triable issues of material fact never shifts. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Because summary judgment or summary adjudication deprives the opposing party of a trial, the moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and doubts are resolved in favor of the opposing party. (See's *Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900; *Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830.)

ANALYSIS

Plaintiff argues that section 15(a) of the Receivable Sales Agreement provides that New York law governs disputes arising from the agreement. (Smalbach Decl., ¶ 5 & Ex. A, § 15, p. 11.) Under both New York and California law, a breach of contract claim requires proof of: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damages. (*Kapoor v. AWI Wireless LLC* (N.Y.App.Div. 2018) 159 A.D.3d 1027, 1030; *San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 439.)

Plaintiff has submitted evidence proving each element of its breach of contract claim. On August 29, 2023, Plaintiff and Defendant entered into a Receivable Sales Agreement under which Plaintiff paid \$150,000 in exchange for \$184,500 of Defendant's accounts receivable. (Smalbach Decl., ¶ 4 & Ex. A; SSUMF No. 1.) Defendant agreed to remit 18.69 percent of its weekly receivables, or \$5,125 per week, until Plaintiff collected the full amount sold. (Smalbach Decl., ¶¶ 4, 6 & Ex. A; SSUMF No. 2.)

The agreement required Defendant to maintain an approved account from which Plaintiff could directly debit the weekly payments. (Smalbach Decl., Ex. A.) Defendant also was required to make reasonable efforts to notify Plaintiff if the approved account lacked sufficient funds such that Plaintiff's debits might be rejected for insufficient funds. (*Ibid.*) The agreement further provided that, in the event of a material breach, the remaining balance and all other sums then due and payable would become due. (*Ibid.*)

Plaintiff performed its obligations under the agreement. (Smalbach Decl., ¶ 7; SSUMF No. 3.) Defendant made weekly remittances through February 7, 2024. (Smalbach Decl., ¶ 8 & Exs. A, B; SSUMF No. 4.) Thereafter, Plaintiff's attempts to conduct the scheduled debits failed without prior notice that the approved account lacked sufficient funds or that there had been an adverse change in Defendant's business. (*Ibid.*) Defendant has not made any remittance since February 7, 2024, leaving a balance of \$69,200, plus attorney's fees, interest, and costs. (Smalbach Decl., ¶¶ 8–11 & Exs. A, B; SSUMF No. 5.)

Plaintiff has met its initial burden of proving each element of the third cause of action for breach of contract. Defendant did not file an opposition, and the Court finds no triable issue of material fact based on the evidence submitted or Defendant's operative answer.

Accordingly, Plaintiff's motion for summary adjudication of the third cause of action for breach of contract against Defendant SF Glass Cleaning Solutions is **GRANTED**.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Plaintiff shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

2:00 PM

LINE: 3

24-CIV-03087

DANAE MURRAY VS. GOOGLE, LLC

DANAE MURRAY
GOOGLE, LLC

NATHANIEL MARANWE
FELICIA A DAVIS

DEFENDANT GOOGLE, LLC'S MOTION TO COMPEL (1) FURTHER RESPONSES TO ITS DOCUMENT DEMANDS AND (2) RESPONSES TO ITS FORM INTERROGATORIES

TENTATIVE RULING:

For the reasons stated below, Defendant Google LLC ("Google")'s motion for an order compelling further responses to Google's Request for Production of Documents, Set One is **GRANTED IN PART** and **DENIED IN PART**.

The motion as to Google's Form Interrogatories – Employment Law, Set One and Form Interrogatories – General, Set One, is **DENIED AS MOOT**.

BACKGROUND

This is an employment action alleging that Plaintiff's employer, Defendant Google LLC, violated the California Fair Employment and Housing Act and the Equal Pay Act by paying Plaintiff less than white and male colleagues for substantially equal or substantially similar work.

The Court notes that the discovery process has been arduous. After more than one informal discovery conference, Defendant filed the instant motion to compel. Trial is currently set for October 12, 2026.

Defendant seeks three forms of relief:

(1) an order compelling Plaintiff to respond to Form Interrogatories—Employment Law, Set One, and Form Interrogatories—General, Set One;

(2) an order compelling Plaintiff to comply with the Court's October 27, 2025 discovery order by amending her responses to address asserted deficiencies and supplementing her document production accordingly; and

(3) an order deeming Plaintiff's objections to Google's Request for Production of Documents, Set One, waived.

As relevant here, on March 30, 2026, the parties filed a stipulation providing that Plaintiff would not seek emotional distress damages. Plaintiff agreed "to drop and not pursue further any claim for emotional distress damages, including garden variety emotional distress damages, and will not ask the jury or court to award her any damages related to emotional distress at trial." (Stipulation filed Mar. 30, 2026, ¶ 1.) In return, "Plaintiff shall not have to respond to any discovery requests seeking her medical records or medical information." (Id., ¶ 3.)

Defendant's notice of non-opposition states that Plaintiff's withdrawal of her emotional distress claim obviates the need to respond to discovery seeking medical records or medical information, including the form interrogatories that are the subject of the motion. The Court agrees. Accordingly, the request to compel verified responses to Form Interrogatory—Employment Law No. 212.0, concerning Plaintiff's claimed physical, emotional, or mental injuries, and Form Interrogatory—General No. 10.0, concerning medical history, is **DENIED AS MOOT**.

The remaining issue is Defendant's request for further responses to requests for production that are not limited to medical records, medical information, or emotional distress damages. The motion is unopposed.

LEGAL STANDARD

Unless otherwise limited by court order, any party may obtain discovery regarding any nonprivileged matter that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter is itself admissible or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.)

On receipt of a response to an inspection demand, the demanding party may move for an order compelling a further response if the demanding party contends that: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

A party who fails to timely respond to an inspection demand waives objections, including objections based on privilege or work product, unless the court grants relief from waiver. (Code Civ. Proc., § 2031.300, subd. (a).)

DISCUSSION

The Court has reviewed Defendant's separate statement and the specific requests for production at issue. Plaintiff did not file an opposition. The record reflects multiple informal discovery conferences and ongoing deficiencies in Plaintiff's discovery responses, as set forth in the Declaration of defense counsel Eric D. Distelburger. (Distelburger Decl., ¶¶ 3–22.) The declaration also reflects that Plaintiff failed to timely respond to Defendant's requests for production and interrogatories. (Id., ¶¶ 4, 5, 7, 16–18, 21–22.) In addition, Plaintiff's counsel has repeatedly failed to respond to defense counsel's emails. (Id., ¶¶ 5, 13, 17, 19, 22.) Plaintiff also failed to appear for her scheduled deposition without notice to Defendant. (Id., ¶ 23.)

The Court addresses the requests for production as follows.

RPD No. 14

RPD No. 14 seeks all personal or business calendars, journals, diaries, notebooks, logs, appointment books, or similar documents from May 20, 2020, to the present. Defendant requests an order requiring Plaintiff to identify whether she has additional responsive documents and to identify by Bates number the documents already produced in response to this request.

The motion is **GRANTED IN PART** and **DENIED IN PART** as to RPD No. 14. Plaintiff shall provide a further verified response identifying whether she has additional responsive documents and identifying by Bates number the documents already produced in response to this request. However, information specifically referencing medical records, medical information, or emotional distress damages may be redacted or withheld consistent with the parties' March 30, 2026 stipulation.

RPD Nos. 1–68

Defendant identifies the following deficiencies in Plaintiff's responses:

Deficiency	Document Demand Nos.
Failure to affirm a diligent search and reasonable inquiry have been made.	Nos. 1, 10, 15, 16, 24, 59, and 67
Failure to identify whether responsive documents are being withheld.	Nos. 2-9, 11-13, 17-23, 25-58, 60-66, and 68
Failure to properly identify responsive documents.	Nos. 2-9, 11-13, 17-66, and 68
Waiver of objections	Nos. 1-68

The motion is ruled on as follows:

- As to RPD Nos. 1, 10, 15, 16, 24, 59, and 67, the motion is **GRANTED**. Plaintiff shall provide further verified responses stating that she made a diligent search and reasonable inquiry in an effort to comply.
- As to RPD Nos. 1, 10, 15, 16, 24, 59, and 67, the motion is **GRANTED**. Plaintiff shall provide further verified responses identifying whether she is withholding any documents responsive to Google's requests.
- As to RPD Nos. 2–9, 11–14, 17–66, and 68, the motion is **GRANTED IN PART** and **DENIED IN PART**. Plaintiff shall provide further verified responses identifying, by Bates number, all documents responsive to Google's requests. The motion is denied as to RPD Nos. 5 and 6 to the extent those requests seek medical records, medical information, or emotional distress damages subject to the parties' March 30, 2026 stipulation.
- As to RPD Nos. 1–68, Defendant's request to deem Plaintiff's objections waived is **GRANTED IN PART** and **DENIED IN PART**. Plaintiff's objections are deemed waived except as to requests seeking medical records, medical information, or emotional distress damages covered by the March 30, 2026 stipulation. The stipulation applies, at minimum, to the following requests or portions of requests:
 - RPD No. 5: documents supporting damages or relief, including emotional damages;
 - RPD No. 6: medical, psychological, or counseling reports, bills, notes, and any signed medical release;

- RPD No. 60: documents supporting Plaintiff's allegation of stress or embarrassment;
- RPD No. 61: documents supporting Plaintiff's allegation concerning fear of retaliation, including awareness through a survey; and
- RPD No. 62: documents supporting Plaintiff's allegation that therapy sessions addressed work-related harm.

Plaintiff shall serve further verified responses and produce all responsive, nonprivileged documents consistent with this ruling.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Defendant shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

2:00 PM

LINE: 4

24-CIV-03087

DANAE MURRAY VS. GOOGLE, LLC

**DANAE MURRAY
GOOGLE, LLC**

**NATHANIEL MARANWE
FELICIA A DAVIS**

DEFENDANT GOOGLE, LLC'S MOTION FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the motion for terminating sanctions, or alternatively monetary sanctions, is **DENIED**.

Code of Civil Procedure section 2023.030 identifies the types of discovery sanctions available, including monetary, issue, evidence, and terminating sanctions, but such sanctions must be authorized by the chapter governing the particular discovery method or by a failure to obey a discovery order. Here, Defendant has not identified a specific statutory provision authorizing terminating sanctions. To the extent Defendant argues that Plaintiff failed to comply with a court order compelling further discovery responses, the record does not support that assertion. Defendant relies on the minutes from the Informal Discovery Conferences held on October 27, 2025, and December 1, 2025, but those minutes reflect only the parties' informal agreement; they do not constitute a court order compelling discovery.

2:00 PM

LINE: 5

24-CIV-03114

TIFFANY BARNETT VS. LAUREN TALIVAA, ET AL

TIFFANY BARNETT
LAUREN TALIVAA

MATTHEW MATERN
MICHELLE FREEMAN

DEFENDANT SOUTHWEST AIRLINES CO.'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET FOUR AND FORM INTERROGATORY NO. 12.3

TENTATIVE RULING:

For the reasons stated below, Defendant Southwest Airlines Co.'s motion to compel further responses to Request for Production, Set Four, No. 69, and Form Interrogatory—General, Set One, No. 12.3, is **DENIED**.

California's work-product doctrine is codified in Code of Civil Procedure section 2018.030, which establishes two tiers of protection. Subdivision (a) provides absolute protection: "A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." (Code Civ. Proc., § 2018.030, subd. (a).) Subdivision (b) provides qualified protection for other attorney work product, making it discoverable only if the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense, or will result in an injustice. (Code Civ. Proc., § 2018.030, subd. (b).) The Legislature's declared policy is to encourage attorneys to prepare their cases thoroughly and to prevent attorneys from taking undue advantage of their adversary's industry and efforts. (Code Civ. Proc., § 2018.020.)

The California Supreme Court addressed the work-product status of attorney-obtained witness statements in *Coito v. Superior Court* (2012) 54 Cal.4th 480. The Court held that "a witness statement obtained through an attorney-directed interview is entitled as a matter of law to at least qualified work product protection." (*Id.* at p. 499.) This baseline protection applies regardless of whether the attorney exercised selectivity in choosing which witnesses to interview because the attorney has expended time and effort identifying and locating each witness, securing the witness's willingness to speak, listening to the witness, and preserving the witness's statement. (*Id.* at p. 496.) By contrast, a statement independently prepared by a witness does not become protected work product merely because it is later transmitted to an attorney. (*Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214.)

Coito held that attorney-prepared witness statements are not automatically entitled to absolute protection as a matter of law; rather, "the applicability of absolute protection must be determined case by case." (*Coito, supra*, 54 Cal.4th at p. 495.) Absolute protection applies when the content of a declaration would reveal the attorney's impressions, conclusions, opinions, legal research, or theories, including where "the questions that the attorney has chosen to ask, or not ask, provide a window into the attorney's theory of the case or the attorney's evaluation of what issues are most important." (*Ibid.*) To invoke absolute protection, the attorney resisting discovery must make a preliminary or foundational showing that disclosure would reveal counsel's impressions, conclusions, opinions, legal research, or theories. (*Id.* at pp. 495–496.) Upon an adequate

showing, the trial court may conduct an in camera inspection, if necessary, to determine whether absolute work-product protection applies to some or all of the material. (Id. at p. 496.)

For qualified work product, a bare showing of good cause is insufficient to compel production. Rather, disclosure may be ordered only if the party seeking discovery carries the heavier burden of demonstrating unfair prejudice or injustice. (*People v. Hunter* (2017) 15 Cal.App.5th 163, 182.) Coito similarly explains that “a showing that a witness is no longer available or accessible, or some other showing of unfair prejudice or injustice” is necessary to overcome qualified work-product protection. (Coito, *supra*, 54 Cal.4th at p. 496.)

Here, Defendant Southwest Airlines Co. seeks a further response to Request for Production, Set Four, No. 69, which requests “[a]ll statements from any witnesses related in any way to the allegations in your Complaint.” (Separate Statement in Support of Motion, p. 2.) Plaintiff objected on several grounds, including attorney-client privilege and attorney work product, and responded as follows:

With respect solely to witness statement[s] obtained by Plaintiff Tiffany Barnett personally, she is not in possession, custody, or control of any responsive documents. Discovery and investigation are ongoing. Plaintiff reserves the right to supplement and/or amend the response to this request, while denying any obligation to do so.

(Separate Statement in Support of Opposition, p. 2.)

Plaintiff produced a privilege log relevant to the responses at issue on November 18, 2025. (Sabourian Decl., ¶ 12.) Plaintiff’s counsel states that, using information provided by Plaintiff and information obtained in discovery, counsel’s office drafted questions for witnesses to answer. Counsel further states that his office interviewed certain witnesses whose responses were recorded and/or used to create written declarations based on the witnesses’ statements. (Id., ¶ 13.) Plaintiff argues that those declarations are entitled to absolute protection because they reflect counsel’s impressions, conclusions, opinions, legal research, or theories. (Opp., p. 4:13–14.)

Defendant responds that Plaintiff’s showing is insufficient to establish absolute protection because counsel does not state that the witness statements are intertwined with counsel’s explicit comments or notes, does not state that the questions asked reveal counsel’s theory or evaluation of the case, and because declarations produced in a related federal case allegedly contain factual statements rather than expressions of counsel’s opinion. (Reply, p. 3:13–27.)

The Court finds Plaintiff’s showing sufficient. Factual statements by witnesses in attorney-drafted declarations may “provide a window into the attorney’s theory of the case or the attorney’s evaluation of what issues are most important” because the factual content is necessarily shaped by the questions counsel chose to ask. (Coito, *supra*, 54 Cal.4th at p. 495.) Here, the evidence shows that the witness declarations at issue resulted from attorney-drafted questions and attorney-directed interviews, and were prepared by counsel’s office. Disclosure would reveal counsel’s selection of witnesses, counsel’s chosen areas of inquiry, and counsel’s evaluation of the issues most important to Plaintiff’s case. Absolute work-product protection therefore applies.

Defendant also argues that Plaintiff waived work-product protection by “ostensibly” relying on the witnesses whose declarations were obtained. (Reply, p. 6:24–28.) No such reliance has been demonstrated. Accordingly, there has been no waiver.

The motion is therefore **DENIED** as to Request for Production, Set Four, No. 69.

With respect to Form Interrogatory—General, Set One, No. 12.3, Defendant seeks information about written or recorded statements obtained by Plaintiff. The same analysis applies because the interrogatory seeks information about attorney-work-product-protected declarations and would reveal which witnesses Plaintiff’s counsel chose to interview. *Coito* held that “in some cases, the very fact that the attorney has chosen to interview a particular witness may disclose important tactical or evaluative information, perhaps especially so in cases involving a multitude of witnesses.” (*Coito, supra*, 54 Cal.4th at p. 495.) Here, counsel selected certain witnesses based on information provided by Plaintiff and information obtained in discovery. Requiring a further response to Form Interrogatory No. 12.3 would reveal tactical or evaluative information protected by the work-product doctrine. (Sabourian Decl., ¶ 13.)

The motion is therefore **DENIED** as to Form Interrogatory—General, Set One, No. 12.3.

SANCTIONS

The Court finds that Defendant had substantial justification for bringing the motion because it presented close legal issues regarding whether the witness statements, the contents of which were unknown to Defendant, are entitled to absolute or qualified work-product protection. Plaintiff’s request for monetary sanctions is therefore **DENIED**.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Plaintiff shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

2:00 PM

LINE" 6

25-CIV-05293

GLORIA SANCHEZ NGUYEN VS. GOODWILL OF THE SAN FRANCISCO BAY, A CALIFORNIA CORPORATION

GLORIA SANCHEZ NGUYEN

GOODWILL OF THE SAN FRANCISCO BAY, A CALIFORNIA CORPORATION

PARVIZ DARABI

MICHAEL A. WERTHEIM

PLAINTIFF GLORIA NGUYEN'S MOTION TO BE RELIEVED AS COUNSEL OF RECORD

TENTATIVE RULING:

The unopposed motion of Parviz Darabi to be relieved as counsel of record for Plaintiff Gloria Sanchez Nguyen is **GRANTED**. Pursuant to California Rules of Court, rule 3.1362(e), the order relieving counsel does not become effective until proof of service of a copy of the signed order on the client has been filed with the Court.

**UD LAW AND MOTION CALENDAR
THURSDAY, JUNE 18, 2026**

2:00 PM

LINE: 1

26-UDL-00133

MERCY HOUSING CALIFORNIA VS. IMAD OUBELLA, ET AL

MERCY HOUSING CALIFORNIA
IMAD OUBELLA

DANIEL M. BORNSTEIN
PRO SE

PLAINTIFF MERCY HOUSING CALIFORNIA'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Plaintiff Mercy Housing California's unopposed Motion for Summary Judgment, filed June 1, 2026, is **GRANTED**. (Code Civ. Proc., §§ 437c, 1170.7.)

Plaintiff's Request for Judicial Notice, filed June 1, 2026, is **GRANTED**. (Evid. Code, § 452, subd. (d).) On its own motion, the Court also takes judicial notice of Plaintiff's Motion to Compel, filed April 3, 2026, in which Plaintiff requested an order deeming certain requests for admission admitted. The Court takes judicial notice of the existence and filing of these court records, but not the truth of any disputed factual assertions contained in them.

BACKGROUND

This is a residential unlawful detainer action involving the property located at 2700 Middlefield Road, Unit 318, Redwood City, California. Plaintiff had Defendant Imad Oubella served with a 10-day notice to quit after Defendant allegedly physically assaulted another resident.

In February 2026, Plaintiff served Defendant with several sets of written discovery, including requests for admission. Defendant did not respond to the requests for admission. Plaintiff then filed a motion to have the requests deemed admitted, which the Court granted on April 15, 2026. (Apr. 15, 2026 Order.)

By virtue of the April 15, 2026 order, Defendant is deemed to have admitted 29 separate requests for admission, including the following:

- all facts set forth in the 10-day notice to quit served on Defendant are true;
- Plaintiff served Defendant with the 10-day notice to quit on December 30, 2025;
- Defendant failed to surrender possession of the premises after expiration of the 10-day notice to quit;
- all allegations in the Complaint are true;

- Defendant has no admissible evidence that the 10-day notice to quit is defective;
- Defendant has no applicable affirmative defenses to the Complaint;
- Plaintiff is entitled to possession of the premises against Defendant;
- on or about December 4, 2025, Defendant physically assaulted another resident by striking her and pushing her down, causing her to fall, hit her head, and lose consciousness;
- on or about December 4, 2025, Defendant threatened the resident he physically assaulted by stating, “Are you scared of me now? I could kill you”; and
- on or about December 4, 2025, the Redwood City Police Department was required to intervene, and Defendant was arrested.

The above admissions are excerpts from Defendant’s deemed admissions. Defendant also admitted that he has no admissible evidence supporting any of his claimed defenses.

LEGAL STANDARD

In an unlawful detainer action, a motion for summary judgment may be made at any time after the answer is filed on five days’ notice. (Code Civ. Proc., § 1170.7.) The timing requirements imposed by Code of Civil Procedure section 437c, subdivision (a), and the separate statement requirement imposed by section 437c, subdivision (b), do not apply to summary judgment motions in unlawful detainer actions. (Code Civ. Proc., § 437c, subd. (n).) In all other respects, a motion for summary judgment in an unlawful detainer action is granted or denied on the same basis as a motion under section 437c. (Code Civ. Proc., § 1170.7.)

A motion for summary judgment shall be granted if the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

A plaintiff moving for summary judgment has met its burden of showing there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling it to judgment. (Code Civ. Proc., § 437c, subd. (p)(1).) Once the plaintiff meets that burden, the burden shifts to the defendant to show that a triable issue of material fact exists as to the cause of action or a defense. (Ibid.) The defendant may not rely on the allegations or denials in the pleadings, but must set forth specific facts showing that a triable issue of material fact exists. (Ibid.)

ANALYSIS

Plaintiff’s unopposed Motion for Summary Judgment is **GRANTED**. Defendant has admitted that all allegations in Plaintiff’s unlawful detainer Complaint and in the 10-day notice to quit served on Defendant are true. (RFA Nos. 4, 7.) Defendant admitted that he was served with the notice to quit and remained in possession after expiration of the period stated in the notice. (RFA Nos. 4–6.)

Defendant further admitted that he physically assaulted another resident, causing her to fall, hit her head, and lose consciousness, and that he threatened to kill the other resident, resulting in police intervention and Defendant’s arrest. (RFA Nos. 15–17.) Defendant also admitted that he has no valid affirmative defenses to the Complaint and that Plaintiff is entitled to possession of the premises. (RFA Nos. 13–14.)

Plaintiff has met its burden under Code of Civil Procedure section 437c, subdivision (p)(1), to show that there is no triable issue of material fact as to Plaintiff's unlawful detainer claim. (Code Civ. Proc., § 1161, subd. 4.) Defendant offered no evidence in response and did not oppose the motion.

Accordingly, Plaintiff Mercy Housing California's Motion for Summary Judgment is **GRANTED**. Defendant Imad Oubella's lease or tenancy is terminated. Plaintiff is entitled to entry of judgment for possession of the premises against Defendant Imad Oubella.

2:00 PM

LINE: 2

26-UDL-00230

ABELARDO ARTEAGA SHIRAKI VS. ROHINI NIRMA SINGH, ET AL

ABELARDO ARTEAGA SHIRAKI
ROHINI NIRMA SINGH

RAYMOND R. MILLER
MASUMI M. SAKAI

DEFENDANT DYHANA ROELL'S MOTION TO SET ASIDE DEFAULT/JUDGMENT

TENTATIVE RULING:

This motion was originally set for hearing on May 7, 2026. The matter was continued to permit the contesting parties an opportunity to present argument before the Court. The Court's May 7, 2026 tentative ruling is set forth below:

For the reasons stated below, the Motion to Set Aside Default and Default Judgment and Quash Service of Summons (the "Motion") brought by Defendant Dhyana Roell, erroneously sued as Dhyana Rowell ("Defendant"), is **GRANTED**.

BACKGROUND

According to the allegations of the Complaint, Maya Wati Singh died on March 7, 2023, and the single-family residential property located at 1015 Herman Street, San Bruno, California 94066 (the "Premises") is now administered by Plaintiff, the court-appointed administrator of the decedent's estate. Defendants are alleged to be non-heir occupants of the Premises who remain in possession without authorization from the estate of Ms. Singh and without any lease or tenancy created by Plaintiff. Defendants are therefore alleged to be unauthorized holdover occupants rather than lawful tenants.

Plaintiff further alleges that Defendants' continued occupancy interferes with Plaintiff's fiduciary duty to marshal and preserve estate assets. Specifically, Plaintiff alleges that Defendants' occupancy prevents inspection and lawful marketing of the Premises and exposes the estate to carrying costs, liability, and waste. Accordingly, Plaintiff served Defendants with a Three-Day Notice to Vacate Property on January 30, 2026. (Complaint, item 10 & Exh. 2.) However, although the Complaint references a proof of service as Exhibit 3, no such proof of service is attached. (Id., item 10.d.)

As to Defendant Dhyana Roell, Plaintiff requested entry of default and clerk's judgment for restitution of the Premises and issuance of a writ of execution on April 8, 2026. The Clerk entered default the same day. (Request for Entry of Default filed Apr. 8, 2026 ("Default").) On April 14, 2026, the Clerk entered judgment awarding possession of the Premises to Plaintiff. (Judgment—Unlawful Detainer filed Apr. 14, 2026 ("Default Judgment").) Plaintiff thereafter filed a Notice of Entry of Judgment on April 16, 2026, reflecting service upon Defendant.

Defendant now moves to set aside the Default and Default Judgment and to quash service of summons.

The Motion is **GRANTED**.

DISCUSSION

Defendant asserts that she remained at home daily caring for her autistic child after being approached by Plaintiff's counsel in January 2026 and told she needed to vacate the Premises within three weeks. Defendant maintains she had no knowledge of the unlawful detainer proceedings and contends Plaintiff failed to exercise reasonable diligence in attempting service. (Motion, 8:12-16.)

Defendant declares that she first learned of the action on April 17, 2026, after receiving a courtesy notice from the Court regarding reassignment of the unlawful detainer matter. Defendant further declares that she contacted the Clerk's Office and was advised to await service of the summons and complaint, but was never served despite the subsequently filed Proof of Service of Summons stating otherwise.

Defendant's declaration sufficiently establishes surprise within the meaning of Code of Civil Procedure section 473, subdivision (b), because Defendant asserts she did not learn of the action until after entry of default and the Default Judgment. The remaining requirements for relief under section 473, subdivision (b), have also been satisfied.

The Proof of Service of Summons filed March 20, 2026 ("Proof of Service") purports to establish both personal service and substituted service upon Defendant. (Proof of Service, items 5.a, 5.b.(2).) However, the Proof of Service does not establish that service was performed by a registered California process server. Accordingly, contrary to Plaintiff's contention, the Proof of Service is not entitled to the rebuttable presumption affecting the burden of proof under Evidence Code section 647.

In opposition, Plaintiff submits the declaration of the process server, who again states that Defendant was served with the unlawful detainer summons, complaint, and related pleadings identified in the filed Proof of Service. (Okuda-Dennis Decl., ¶ 8.) However, the declaration largely repeats the conclusory assertions contained in the Proof of Service and provides minimal factual detail concerning the manner in which the process server identified Defendant.

Plaintiff relies upon *Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 for the proposition that filing a statutorily compliant proof of service creates a rebuttable presumption of proper service. However, *Floveyor* also makes clear that the party asserting valid service bears the burden of establishing all jurisdictional facts. (Id. at p. 796.)

Plaintiff's remaining authorities are similarly unpersuasive under the circumstances presented here. Plaintiff cites *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 for the proposition that a "simple denial of service" is insufficient to overcome a valid proof of service. However, the cited opinion does not contain that quoted language. Rather, *Zara* addressed the evidentiary effect of a declaration by a registered California process server entitled to the statutory presumption under Evidence Code section 647. No such presumption applies here.

Likewise, Plaintiff cites *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544 for the proposition that self-serving declarations lacking corroboration are insufficient to rebut the presumption of valid service. The cited case contains no such language and is only marginally relevant to the issues presently before the Court.

The evidence presented by both parties is limited. Defendant declares she was never personally served and first learned of the lawsuit through the Court's courtesy notice. Plaintiff, by contrast, relies upon a Proof of Service and supporting declaration that provide minimal detail regarding the process server's identification of Defendant or the circumstances of service. Notably, the process server's declaration merely states that "[t]he individual identified herself as Dhyana Roell/Dhyana Rowell and accepted the documents." (Okuda-Dennis Decl., ¶ 9.)

At bottom, the issue turns upon conflicting evidence regarding service. California law strongly favors resolution of cases on their merits, and doubts regarding relief from default are to be resolved in favor of the moving party. As explained in *Rosenthal v. Garner* (1983) 142 Cal.App.3d 891, 898:

"It is also well established that it is the policy of the law to bring about a trial on the merits whenever possible, so that any doubts which may exist should be resolved in favor of the application, to the end of securing to a litigant his day in court and a trial upon the merits...."

Similarly, "when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court's order setting aside a default." (*Uriarte v. United States Pipe & Foundry Co.* (1996) 51 Cal.App.4th 780, 790.)

Here, Defendant acted promptly upon learning of the Default Judgment. Under these circumstances, Defendant has presented sufficient evidence to warrant relief under Code of Civil Procedure section 473, subdivision (b).

The Court further notes that evidentiary conflict cases are distinguishable from cases in which no showing has been made under section 473. (See *Iott v. Franklin* (1988) 206 Cal.App.3d 521, 530.) Resolution of conflicts in the evidence is committed to the trial court.

Accordingly, because substantial doubt exists regarding whether Defendant was properly served, that doubt must be resolved in Defendant's favor. The motion to quash service of summons is therefore **GRANTED**, and the Default and Default Judgment are **VACATED**.

OTHER ARGUMENTS

Defendant also invokes Code of Civil Procedure section 473.5. Although the Court need not rely upon that statute in light of the ruling above, the Court notes that Plaintiff's opposition concerning section 473.5 is not persuasive.

Plaintiff additionally argues that the Notice of Motion was defective because it omitted the hearing date, time, and department when initially filed. Plaintiff cites *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697. However, Carlton held that any defect in notice may be waived where the opposing party files an opposition, appears, and demonstrates no prejudice arising from the alleged defect. Here, Plaintiff filed an opposition to the Motion and does not establish prejudice arising from the asserted notice defect.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by

law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 3

26-UDL-00230

ABELARDO ARTEAGA SHIRAKI VS. ROHINI NIRMA SINGH, ET AL

**ABELARDO ARTEAGA SHIRAKI
ROHINI NIRMA SINGH**

**RAYMOND R. MILLER
MASUMI M. SAKAI**

DEFENDANT ROHINI SINGH'S MOTION FOR ORDER SETTING ASIDE AND VACATING DEFAULT AND DEFAULT JUDGMENT AND GRANTING DEFENDANT LEAVE TO DEFEND

TENTATIVE RULING:

For the reasons stated below, Defendant Rohini Nirma Singh's Motion for Order Setting Aside and Vacating Default and Default Judgment and Granting Leave to Defend is **GRANTED**.

Plaintiff requested entry of Defendant's default and a clerk's judgment for restitution of the premises and issuance of a writ of possession on April 6, 2026. The Clerk entered Defendant's default on April 7, 2026, and entered default judgment for possession on April 14, 2026. Defendant now moves to set aside the default and default judgment on the grounds that she was not served and did not receive actual notice in time to defend.

The motion is well taken. The record does not establish valid service sufficient to support the default and default judgment. Plaintiff relies on the Supplemental Declaration of Chaz-Kawika Tadashi Okuda-Dennis, who states that he personally served Defendant on March 12, 2026. However, the declaration does not state that the declarant is a marshal, sheriff, or registered process server. Service of a prejudgment claim of right to possession under Code of Civil Procedure section 415.46 must be effected by a marshal, sheriff, or registered process server. (Code Civ. Proc., § 415.46, subd. (b).) On this record, Plaintiff has not shown compliance with that requirement.

Defendant also presents evidence that she did not receive actual notice of the unlawful detainer action in time to defend. She declares that she was ill, took prescribed medication, and was asleep at the time service allegedly occurred. She further declares that the residence's Ring camera did not record movement at the door at the times stated in the proofs of service. Defendant states that she first learned of the action after receiving the notice of entry of judgment. These facts support relief under Code of Civil Procedure section 473.5 because service did not result in actual notice in time to defend, and the record does not show that Defendant's lack of notice resulted from avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5, subds. (a), (c).)

The Court also declines to consider Plaintiff's opposition. The hearing is set for June 18, 2026. Opposition papers were due no later than June 4, 2026, and reply papers were due no later than June 10, 2026. (Code Civ. Proc., § 1005, subd. (b).) Plaintiff filed the opposition on June 10, 2026, the reply deadline, thereby depriving Defendant of a meaningful opportunity to respond.

The Court further notes that Plaintiff's declaration confirms that issues concerning whether the premises belong to the estate or to a trust are set to be heard in the Probate Court on June 25, 2026. The Court does

not decide those title or probate issues here. However, the existence of those issues further supports allowing Defendant to appear and defend before a judgment for possession is enforced.

California law favors disposition of cases on their merits, and doubts concerning relief from default are generally resolved in favor of allowing a hearing on the merits. (*Barnes v. Witt* (1962) 207 Cal.App.2d 441, 447.) Accordingly, the default entered on April 7, 2026, and the default judgment entered on April 14, 2026, are set aside. Defendant is granted leave to file and serve her proposed answer.

If this tentative ruling is uncontested, it shall become the order of the Court. Defendant's counsel shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

Posted: 3:00 P.M.

